

Law & Motion

1. 9:00 AM CASE NUMBER: C23-00029
CASE NAME: UNIVERSE PAINTING, INC. VS. LYNN BRYANT TRUSTEE OF THE BENNETT TRUST
*HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED CROSS COMPLAINT
FILED BY: LYNN BRYANT TRUSTEE OF THE BENNETT TRUST
TENTATIVE RULING:

Cross-complainant Bryant seeks leave to file a first amended cross-complaint. The motion is expressly unopposed and is accordingly **granted**. This should have been handled by stipulation.

2. 9:00 AM CASE NUMBER: C23-00343
CASE NAME: JOHN SCOTT VS. GOLDEN RAIN FOUNDATION
HEARING ON SUMMARY MOTION
FILED BY: GOLDEN RAIN FOUNDATION
***TENTATIVE RULING**

The summary judgment hearing is **vacated** in light of the conditional settlement. The motion can be reset if that turns out to be necessary.

3. 9:00 AM CASE NUMBER: C23-02323
CASE NAME: NORTH OF MARINA ASSOCIATION VS. CITY OF RICHMOND
HEARING ON DEMURRER TO: 1ST AMENDED CROSS-COMPLAINT OF CITY OF RICHMOND FROM:
ROTO-ROOTER SERVICES COMPANY
FILED BY: ROTO-ROOTER SERVICES COMPANY
TENTATIVE RULING:

Cross-defendant Roto-Rooter Services Company demurs to the fourth cause of action in City of Richmond's first amended cross-complaint, which asserts a claim for express indemnity. Roto-Rooter argues that Richmond cannot maintain an express indemnity claim against it because the original/underlying complaints in this matter make no allegations of fault against Roto-Rooter and the express indemnity clause provides that it will not apply in instances of Richmond's "sole negligence."

For the reasons discussed below, the Court **overrules** Roto-Rooter's demurrer. Roto-Rooter is ordered to file and serve its answer to the first amended cross-complaint within 20 days of entry of this order.

Background

Plaintiffs North of Marina Association (NOMA) and Rows at North of Marina Association (Rows, together with NOMA, Plaintiffs) filed separate lawsuits against the City of Richmond and Does 1-50, asserting claims for inverse condemnation, dangerous condition on public property, private nuisance, public nuisance, and trespass. (NOMA Amended Complaint, p. 1; Rows Complaint, p. 1.) All the claims asserted by NOMA and Rows relate to sewer overflows at real property located in Richmond,